

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

2026PRCE068655: IN THE MATTER OF MIKAYLA HATFIELD

09/11/2026 in Department J6

Hearing on Petition for Appointment of Conservator of the Person and Estate

Is jurisdiction in Ventura County in the best interest of the proposed conservatee? (Probate Code section 2201). Is proposed conservatee going to be in the facility in Lancaster long term or are there plans for her to return to Ventura County in the near future? If facility in Lancaster is for foreseeable future, petition should be filed in the appropriate county.

Deficiencies:

- Service of Citation is not proper. Proposed conservatee must be personally served, not her father. Also not completed (date and time is blank). (Probate Code § 1824.)
- Notice of hearing includes relatives not listed in Paragraph 11 of the petition. All relatives need to be listed in petition.
- Notice of hearing not served on regional center.
- Notice of hearing proof of service does not have the date of service listed.
- Item 1(c) in the petition is checked requesting bond not be required, but there is no reason given, i.e., Attachment 1c.
- Item 3b of the petition is checked stating petitioner is the proposed conservator. However, the petitioner appears to be the proposed conservatee.
- Item 10 of the petition is checked stating that a petition for temporary conservatorship is filed. It does not appear to be filed.
- No attachment for orders and powers for items 1(d)-1(f) requested in petition. Are powers necessary?
- Attachments 3(f)(1) and 3(f)(2) not included on in petition.
- Per Probate Code § 1800.3(d), if the Court becomes aware that the proposed conservatee has a developmental disability and the proposed conservator is not seeking authority to act under section 2356.5 [MND powers], **the court shall deem the proceeding to be seeking a limited conservatorship.** Here, Mikayla has a developmental disability and Petitioner is not

seeking MND powers. Accordingly, the Court should deem the proceeding as seeking a Limited CV. This means that notice to regional center and a regional center report will be needed.

- Confirmation of Viewing Conservatorship Video (VN-182) has not been filed. (Local Rule 10.02A(3).)
- Preliminary/Interim Financial Declaration (VN-262) has not been filed. (Local Rule 10.02A(4))
- Confidential Declaration on Medical Ability to Attend Hearing (GC-325) has not been filed.
- Capacity Declaration (GC-335) (Probate Code §§ 1825, 1890, 2356.5 and 1801) has not been filed.

Should the Court retain jurisdiction, the Court intends to continue the hearing for deficiencies to be addressed and amended petition (for limited conservatorship) to be filed.